

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariel Courage	Team: Squad #06	CCRB Case #: 201504901	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 06/08/2015 6:15 PM	Location of Incident: In front of 477 77th Street	18 Mo. SOL 12/8/2016	Precinct: 68		
Date/Time CV Reported Mon, 06/08/2015 8:06 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/16/2015 12:16 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Thomas McDonnell	01930	933982	NARCBBS
2. DT3 Christyan Garcia	04135	945748	NARCBBS
3. DT3 Eric Sosinski	06787	939504	NARCBBS
4. SGT Salvatore Latorre	04020	938821	NARCBBS
5. DT3 Richard Bevers	1587	944365	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Christyan Garcia	Abuse: Det. Christyan Garcia stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Substantiated
B . DT3 Richard Bevers	Abuse: Det. Richard Bevers questioned § 87(2)(b)	B . Unsubstantiated
C . DT3 Richard Bevers	Abuse: Det. Richard Bevers interfered with § 87(2)(b)'s ability to record an incident.	C . Alleged Victim Uncooperative
D . DT3 Thomas McDonnell	Discourtesy: Det. Thomas McDonnell spoke discourteously to § 87(2)(b)	D . Substantiated
E . DT3 Thomas McDonnell	Force: Det. Thomas McDonnell used physical force against § 87(2)(b)	E . Exonerated
F . DT3 Thomas McDonnell	Force: Det. Thomas McDonnell used a chokehold against § 87(2)(b)	F . Unsubstantiated
G . DT3 Thomas McDonnell	Force: Det. Thomas McDonnell restricted § 87(2)(b)'s breathing.	G . Unsubstantiated
H . DT3 Thomas McDonnell	Force: Det. Thomas McDonnell used physical force against § 87(2)(b)	H . Unsubstantiated
I . SGT Salvatore Latorre	Abuse: Sgt. Salvatore Latorre frisked § 87(2)(b)	I . Exonerated
J . SGT Salvatore Latorre	Abuse: Sgt. Salvatore Latorre searched § 87(2)(b)	J . Exonerated
K . DT3 Eric Sosinski	Abuse: Det. Eric Sosinski frisked § 87(2)(b)	K . Alleged Victim Uncooperative
L . DT3 Eric Sosinski	Abuse: Det. Eric Sosinski frisked § 87(2)(b)	L . Exonerated

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

This case exceeds the 90-day limit as victims could not be identified until over a month after the case was received.

On June 8, 2015, Sgt. Latorre called IAB to notify them of a prisoner injury (BR 05). On June 8, 2015, § 87(2)(b) called 911 and was forwarded to IAB, where he reported this incident on behalf of individuals unknown to him, but who were identified by the investigation as § 87(2)(b) and § 87(2)(b) (BR 06). § 87(2)(b) filmed a portion of this incident (BR 01 and 02). This case was referred to the CCRB on June 16, 2015. § 87(2)(g)

On June 8, 2015, at approximately 6:15 p.m., Det. Christyan Garcia of NBBS was conducting enforcement on foot in the vicinity of 72nd Street and 3rd Avenue in Brooklyn when he observed a double-parked vehicle. The investigation identified the occupants of this vehicle as such: § 87(2)(b) in the driver seat, § 87(2)(b) in the front passenger seat, § 87(2)(b) in the rear driver seat, § 87(2)(b) in the rear passenger seat, and § 87(2)(b) in the rear middle seat.

Det. Garcia observed an alleged hand-to-hand transaction inside the vehicle. Det. Garcia called his partner, Det. Richard Bevers of NBBS, who picked him up. Det. Garcia and Det. Bevers followed the vehicle without attempting to pull it over until they observed § 87(2)(b) pull over to a hydrant on 77th Street between 4th Avenue and 5th Avenue. § 87(2)(b) pulled over directly in front of 477 77th Street, in front of a barbershop where § 87(2)(b) was getting a haircut. Det. Garcia and Det. Bevers then pulled in behind § 87(2)(b)'s vehicle and activated their lights and sirens (**Allegation A**).

Det. Garcia approached the passenger side and Det. Bevers approached the driver side. Det. Bevers allegedly asked § 87(2)(b) “Are there any drugs or weapons in the vehicle?” (**Allegation B**) Det. Bevers allegedly instructed § 87(2)(b) who was holding his cell phone, “Don’t record; your cell phone could have bullets in it.” (**Allegation C**) Det. Garcia and Det. Bevers requested an additional unit to the scene, and the leader car of their team, occupied by Det. Thomas McDonnell, Det. Eric Sosinski, and Sgt. Salvatore Latorre, responded. Det. McDonnell positioned himself at the rear passenger window. Det. Sosinski positioned himself at the rear driver side window. Sgt. Latorre positioned himself at an unknown part of the driver side.

When Det. McDonnell approached, he allegedly told § 87(2)(b) “Put the fucking phone down,” or, “Put down your fucking phone” (**Allegation D**) § 87(2)(b) refused, stating that he had done nothing wrong. When § 87(2)(b) put his cell phone down on the seat in between his legs, Det. McDonnell said, “Get the fuck out of the car. Get out of the fucking car” (**subsumed under Allegation D**). Det. McDonnell then reached into the vehicle and attempted to punch § 87(2)(b) though he missed, reached for § 87(2)(b)'s neck and missed, scratching his fingernails against the side of § 87(2)(b)'s neck, and ultimately gripping § 87(2)(b) by his shirt and two necklaces that he wore, which consequently broke (**Allegation E**). During this time, Det. McDonnell told § 87(2)(b) “Shut the fuck up. Get the fuck out” (**subsumed under Allegation D**).

Sgt. Latorre and Det. Garcia instructed the other backseat passengers, § 87(2)(b) and § 87(2)(b) to exit the vehicle. § 87(2)(b) and § 87(2)(b) did so, exiting through the rear driver side door. § 87(2)(b) also exited through the rear driver side door and walked around the rear of the vehicle to the rear passenger side door where Det. McDonnell still stood, at which point Det. McDonnell placed both hands around § 87(2)(b)'s neck and squeezed for about 30 seconds, restricting § 87(2)(b)'s breathing (**Allegations F and G**). When Det. McDonnell released § 87(2)(b) he allegedly said, “Who the fuck do you think you are? You think you’re tough? I know who you are. You’re a piece of shit. You’re a miserable bastard. You’re a low-life, a drug-dealer. What the fuck are you going to do, tough guy? You going to hit me?” (**subsumed under Allegation D**) Video footage also documents that Det. McDonnell told § 87(2)(b) “Put your fucking hands down,” (**subsumed under Allegation D**), though this was not alleged by any civilian.

§ 87(2)(b) then reached for a water bottle which was in the pocket of the open rear passenger side door. When § 87(2)(b) reached for it, Det. McDonnell punched him in his face (**Allegation H**). § 87(2)(b) was then brought to the ground and placed in handcuffs.

Meanwhile, Sgt. Latorre frisked and searched § 87(2)(b) (**Allegation I and J**), while Det. Sosinski frisked § 87(2)(b) (**Allegation K**). After Sgt. Latorre frisked and searched § 87(2)(b) Det. Sosinski again frisked him (**Allegation L**).

§ 87(2)(b) was arrested and charged with § 87(2)(b), § 87(2)(a) 160.50 (BR 03). § 87(2)(b) was warned and admonished for his traffic infractions. No other occupant of the vehicle was issued a summons or arrested. No Stop and Frisk report was prepared with respect to this incident (**Allegation M**).

Mediation, Civil and Criminal Histories

- This complaint was not eligible for mediation due to § 87(2)(b)'s arrest.
- As of September 15, 2015, none of the civilians in this incident have filed a Notice of Claim (BR 04).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- None of the civilians have filed any previous CCRB complaints (BR 13, 14, 15, 16, 17 and 18).
- Sgt. Latorre has been a member of the service for 10 years. There are three previous allegations against Sgt. Latorre from three cases that occurred between 2006 and 2008. None of these allegations was substantiated. § 87(2)(g)
- Det. Thomas McDonnell has been a member of the service for 11 years. There are three previous allegations against Det. McDonnell from two separate cases in 2010. One of these allegations is of a use of physical force. None of these allegations was substantiated. § 87(2)(g)
- Det. Christyan Garcia has been a member of the service for 7 years. There are two previous allegations against Det. Garcia from two cases, one in 2009 and the other in 2012. Neither of these allegations was substantiated. § 87(2)(g)
- Det. Eric Sosinski has been a member of the service for 10 years. There are four previous allegations against Det. Sosinski across four separate cases, all from 2008 or 2009. None of these allegations was substantiated. § 87(2)(g)
- Det. Richard Bevers has been a member of the service for 8 years. There is one previous allegation against him.
 - In case 201116609, an allegation of refusal to process civilian complaint was substantiated. The Board recommended Command Discipline and Det. Bevers received Command Discipline – B.

Potential Issues

- When contacted by telephone on August 6, 2015, § 87(2)(b) declined to cooperate with the investigation.
- A witness in the barbershop, § 87(2)(b) provided a telephone statement on July 7, 2015, and scheduled to provide an in-person statement on July 10, 2015. § 87(2)(b) missed this appointment and did not respond to subsequent contact attempts.
- § 87(2)(b) scheduled an appointment with the CCRB but did not appear and did not call to cancel. An additional call and three emails, as well as two letters, were mailed to § 87(2)(b) but no response was received.
- During his telephone statement on August 6, 2015, § 87(2)(b) provided a telephone number for § 87(2)(b). A Lexis Nexis search returned one address for § 87(2)(b). Between August 6, 2015, and August 14, 2015, five calls were

placed and two letters sent to § 87(2)(b). Each time, the undersigned left a voice message for § 87(2)(b). The letters mailed to § 87(2)(b) have not been returned as undeliverable. Because § 87(2)(b) did not respond to these contact attempts, no statement could be obtained from him.

- Attempts to obtain video footage from nearby establishments were unsuccessful (BR 19).

Video Footage Obtained

§ 87(2)(b) recorded two video files on his cell phone. The first file is 1:15 minutes long (BR 01, summary BR 20). It begins after § 87(2)(b) is removed from the civilian vehicle. The second is 7:36 minutes long, and begins after officers have brought § 87(2)(b) onto the ground (Board Review, summary BR 21).

§ 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- Although Det. Bevers and Det. Garcia both participated in stopping § 87(2)(b)'s vehicle, they stopped the vehicle on the basis of Det. Garcia's observation of an alleged hand-to-hand. Det. Bevers did not himself make any observations of this vehicle before they began to follow it. § 87(2)(g)
- Det. Bevers had no recollection of § 87(2)(b) holding a cell phone, and denied either knocking his cell phone to the side or telling him not to record. § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)
- **Offensive Language:** In his telephone statement, § 87(2)(b) (BR 22) alleged that Det. McDonnell called § 87(2)(b) a "dumb Arab" and a "terrorist." § 87(2)(g) § 87(2)(b) did not himself allege this, § 87(2)(g)
- § 87(2)(g)

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

Allegation A – Abuse of Authority: Det. Christyan Garcia stopped the vehicle in which § 87(2)(b)

and § 87(2)(b) **were occupants.**

In his telephone statement (BR 22), § 87(2)(b) said that he left a gym located at 72nd Street and 3rd Avenue in Brooklyn with his friend, § 87(2)(b). § 87(2)(b) was planning to drive to the park to play basketball. § 87(2)(b) drove his father's vehicle, a black Mercedes-Benz with New Jersey plates. § 87(2)(b) sat in the front seat. § 87(2)(b) stopped to pick up his other friend, § 87(2)(b) who was having his hair cut at a barbershop, the name of which § 87(2)(b) could not recall but which he believed was at the intersection of 74th Street and 3rd Avenue in Brooklyn. § 87(2)(b) sat in the backseat behind the driver seat.

§ 87(2)(b) at this time happened to see his friend, § 87(2)(b) with § 87(2)(b)'s cousin, § 87(2)(b) across the street from the barbershop. § 87(2)(b) drove to them. § 87(2)(b) and § 87(2)(b) approached § 87(2)(b)'s vehicle and spoke to him through the open passenger side window. § 87(2)(b) reached over and shook hands with § 87(2)(b). § 87(2)(b) denied exchanging any objects with § 87(2)(b). § 87(2)(b) spoke to § 87(2)(b) and § 87(2)(b) for five to 10 minutes before § 87(2)(b) left. As he drove, § 87(2)(b) called § 87(2)(b) having forgotten to ask him if he wanted to play basketball. When § 87(2)(b) said he did, § 87(2)(b) drove around the block and picked up § 87(2)(b) and § 87(2)(b) on the northwest corner of the intersection of 75th Street and 3rd Avenue. § 87(2)(b) sat in the middle of the backseat and § 87(2)(b) sat in the rear passenger seat. § 87(2)(b) acknowledged that the manner in which he drove during this time might have seemed "a little suspicious."

§ 87(2)(b) then drove in the direction of 84th Street and 5th Avenue, where § 87(2)(b) lives. While on 77th Street between 4th Avenue and 5th Avenue, § 87(2)(b) pulled over to the left side of the road in order to make a cell phone call, at which point an unmarked vehicle pulled in behind § 87(2)(b) with its lights activated. § 87(2)(b) was not issued any summonses. No officer ever told § 87(2)(b) why he had been stopped.

§ 87(2)(b) (BR 25 and 26) said that he was at the intersection of 75th Street and 3rd Avenue with § 87(2)(b) when he saw his friend, § 87(2)(b) drive past. § 87(2)(b) denied having any interaction with § 87(2)(b) as he passed. § 87(2)(b) then returned to pick § 87(2)(b) and § 87(2)(b) up to play basketball. § 87(2)(b) did not speak to § 87(2)(b) through the passenger side window. In his telephone statement (Board Review), § 87(2)(b) acknowledged that he may have shaken hands with § 87(2)(b) at some point, but did not specifically remember doing so. In his in-person statement, § 87(2)(b) denied shaking hands with any of the other occupants, or see any other occupant of the vehicle shaking hands with each other. In both his telephone and in-person statements, § 87(2)(b) denied exchanging any objects with any other occupant of the vehicle, or seeing anyone else do so. § 87(2)(b) confirmed that § 87(2)(b) pulled over in front of 477 77th Street in order to make a phone call, possibly to arrange to pick up of yet another friend to play basketball. § 87(2)(b) also noted that the officer who first approached the driver side, identified by the investigation as Det. Bevers, informed § 87(2)(b) that he had been stopped for pulling over to a fire hydrant.

§ 87(2)(b) (BR 30 and 31) in his telephone statement generally corroborated § 87(2)(b)'s and § 87(2)(b)'s accounts. § 87(2)(b) thought he and § 87(2)(b) may have shaken hands with § 87(2)(b) but no objects of any kind were exchanged between them.

§ 87(2)(b) (BR 23 and 24) first saw § 87(2)(b) when he pulled over in front of 477 77th Street. § 87(2)(b) did not see § 87(2)(b) commit any moving violations prior to stopping. § 87(2)(b) did not respond to contact attempts, and § 87(2)(b) declined to cooperate in the investigation.

Det. Garcia (BR 27) said that he was conducting Narcotics enforcement on foot in the vicinity of 72nd Street and 3rd Avenue. Det. Garcia noted that this area is drug-prone, and that he had made an arrest nearby for heroin earlier that day. Det. Garcia stood on the northwest corner of the intersection, in front of a McDonald's at that location, while Det. Bevers was parked across the street on 3rd Avenue. Det. Garcia observed a black Mercedes-Benz double-park on 3rd Avenue, just before its intersection with 72nd Street. Det. Garcia then observed two males, identified by the investigation as § 87(2)(b) and § 87(2)(b) enter the vehicle through its rear passenger door. Det. Garcia then observed the middle passenger, identified by the investigation as § 87(2)(b) pass "something" to the front passenger of the vehicle. Det. Garcia did not actually see what was passed, but said he could "tell it was an object." When asked how he could tell that it was an object without actually being able to see what was exchanged, Det. Garcia said that he could do so "through his training – most of the time you can't see [the object]," and that he was able to tell this through his later observations of the vehicle.

After briefly touching hands with the rear middle passenger, the front passenger placed his hand inside a bag, possibly a duffel bag, that he held in his lap, before removing his hand again. Det. Garcia at no point observed the front passenger holding an object.

Det. Garcia then called Det. Bevers and informed him that he believed he had just observed a hand-to-hand transaction. Det. Bevers picked up Det. Garcia and they followed the Mercedes-Benz. Det. Garcia made no other observations of the vehicle as he and Det. Bevers followed it for a minute or two. Det. Garcia at this time intended to conduct an investigation of the vehicle, but said that he and Det. Bevers decided not to pull the vehicle over on 3rd Avenue because 3rd Avenue has heavy traffic and is therefore unsafe.

The Mercedes-Benz pulled over to the north side of 77th Street between 4th Avenue and 5th Avenue. Det. Bevers pulled in behind it, but did not activate his lights or sirens. When the Mercedes-Benz pulled over, the rear passenger door of the vehicle opened, as though one of the passengers was preparing to exit. Det. Bevers then activated his lights, at which point the rear passenger door again closed. Det. Garcia noted that through his training and experience, it is not uncommon for a transaction to occur in one location, and for one of the participants of the transaction to be dropped off at a different, nearby location. Based upon this, and his observations of the middle passenger and the front passenger touching hands, as well as the high-crime nature of the area, Det. Garcia believed that he had observed a hand-to-hand narcotics transaction: "all the things that followed after, him driving off and him getting dropped off a little bit further away." Aside from these factors, Det. Garcia had no reason to believe a narcotics transaction had taken place.

Det. Garcia's investigation of this narcotics transaction was interrupted by the struggle between Det. McDonnell and § 87(2)(b). Det. Garcia abandoned the investigation after observing that both § 87(2)(b) and Det. McDonnell were injured, as these injuries took precedence.

§ 87(2)(a) 160.50, § 87(2)(g)

§ 87(2)(a) 160.50

Det. Bevers (BR 33) said he made no observations of the alleged transaction inside the Mercedes-Benz. Det. Bevers received a call from Det. Garcia, who said that he thought he had seen a Narcotics transaction occur inside a black Mercedes-Benz and to come pick him up. Det. Garcia provided no other information to him. Det. Bevers corroborated that once the vehicle pulled over on 77th Street, a door or multiple doors of the vehicle began to open up, though he could not be more specific about which doors. Det. Bevers then activated his lights and all civilians remained in the vehicle. Det. Garcia at no point informed Det. Bevers that the vehicle had been double-parked upon initial observation.

Sgt. Latorre (BR 28), Det. McDonnell (BR 29), and Det. Sosinski (BR 34) were not present for this initial observation of the Mercedes-Benz. Sgt. Latorre believed that at some juncture Det. Garcia informed him that § 87(2)(b)

§ 87(2)(b) had been double-parked upon initial observation, and that § 87(2)(b) was warned and admonished for this infraction. Sgt. Latorre similarly confirmed that no investigation of the possible narcotics transaction was performed, and no summons was issued, as he considered Det. McDonnell's and § 87(2)(b)'s injury to be more serious.

Except when necessary to avoid conflict with other traffic, or when in compliance with law or the directions of a police officer or official traffic-control device, no person shall stop, stand, or park a vehicle on the roadway side of any vehicle stopped, standing, or parked at the edge or curb of a street. NYS VTL § 1202 subsection 1(A) (BR 35) No person shall stop, stand, or park a vehicle within fifteen feet of a fire hydrant except when such vehicle is attended by a licensed operator who is seated in the front seat and who can immediately move such vehicle in case of emergency, unless a different distance is indicated by official signs, markings, or parking meters. NYS VTL § 1202 subsection 3(B) (BR 35)

Officers may stop a vehicle if there is probable cause of a traffic infraction. People v. Robinson, 97 N.Y.2d 341 (2001) (BR 36). Officers may also conduct a vehicle stop if there is reasonable suspicion that the occupant has committed, is committing, or is about to commit a crime. People v. Taylor, 817 N.Y.S.2d 816 (2011 – 4th Dept.) (BR 37) Despite presence at a drug-prone location and the officers' training in narcotics, if the officer cannot see what is passed between the individuals supposedly making an exchange, and cannot describe any other furtive conduct, they do not have reasonable suspicion to stop the individuals in question, and instead only possess a founded suspicion that criminal activity is afoot. People v. Loper, 2014 N.Y. App. Div. LEXIS 1735 (2014) (BR 38).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is recommended that **Allegation A** be closed as **substantiated**.

Allegation B – Abuse of Authority: Det. Richard Bevers questioned § 87(2)(b)

Allegation C – Abuse of Authority: Det. Richard Bevers interfered with § 87(2)(b)'s ability to record an incident.

§ 87(2)(b) (BR 22) alleged that Det. Bevers told him, “Don’t record, your phone could have bullets in it,” and knocked his cell phone to the side. § 87(2)(b) did not cooperate with the investigation. § 87(2)(b) (BR 30 and 31) and § 87(2)(b) (BR 25 and 26) both loosely corroborated that Det. Bevers made some statement to the effect of, “Don’t take your cell phones out,” but did not corroborate § 87(2)(b)'s phrasing, and did not see Det. Bevers knock his cell phone to the side. § 87(2)(b) and § 87(2)(b) also both alleged that Det. Bevers asked § 87(2)(b) “Are there any drugs or weapons in the vehicle?” § 87(2)(b) did not himself allege this. § 87(2)(b) (BR 23 and 24) did not corroborate either of these two allegations. § 87(2)(b) did not begin recording until after these allegations occurred.

Det. Bevers (BR 33) denied telling any civilian, “Don’t record, your phone might have bullets in it,” or hearing any officer say anything to this effect.

Det. Bevers denied asking if any occupant had drugs, but acknowledged that he might have asked if any occupant had weapons. Det. Bevers asked this question out of a general concern for officer safety, though he had no specific indication that any of the occupants were armed. Det. Bevers noted that as he walked up to the vehicle he observed the rear occupants “fidgeting,” or “nervously shaking,” with their hands in their laps, and one of the rear occupants moving a bag down between their legs. Det. Bevers could not be more specific about which occupants were fidgeting, as he observed this only briefly. Det. Bevers instructed the rear occupants to show their hands, but did not see if they did so, as once he approached the driver side window he focused upon the driver.

All officers (BR 27, 28, 29, 34) corroborated that the rear occupants of the vehicle were moving around in some fashion, but varied as to how they were moving. None of the other officers interviewed heard Det. Bevers ask whether or not there were any drugs or weapons in the vehicle.

Under the fellow officer rules, officers are entitled to rely on the information received from a fellow officer, as this information is presumed reliable and accurate. People v. Powell, 101 A.D.3d 756 (2nd Dept., 2012) (BR 39) An officer’s request for information must be supported by an objective credible reason, not necessarily indicative of criminality. However, an officer cannot ask accusatory questions without founded suspicion that criminality is afoot. People v. Hollman, 79 N.Y.2d 181 (1992) (BR 40). An officers’ observation of the occupants of a vehicle acting nervously does not provide the officer with founded suspicion of criminality. People v. Garcia, 959 N.Y.S.2d 464, 467-69 (2012) (BR 41) Evidence that, during a traffic stop, a defendant behaved nervously, repeatedly looked towards the back seat, and failed to comply with directives, was sufficient to establish reasonable suspicion that a weapon which posed an actual and specific danger to the officers’ safety was secreted in the area behind to front passenger seat. People v. Hardee, 2015 N.Y. App. Div. Lexis 2250 (App. Div. 1st Dep’t, 2015) (BR 42)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**. § 87(2)(g)

it is recommended that Allegation C be closed as **victim uncooperative**.

Allegation D – Discourtesy: Det. Thomas McDonnell spoke discourteously to § 87(2)(b)

§ 87(2)(b) (BR 25 and 26) alleged that when officers first approached the vehicle, he was holding his cell phone in his right hand, above his lap, just in front of his midsection. § 87(2)(b) said that at some point during the vehicle stop, after § 87(2)(b) provided his license to Det. Bevers, § 87(2)(b) looked up at Det. McDonnell, who was hovering at the rear passenger window. § 87(2)(b) recognized Det. McDonnell from prior occasions when Det. McDonnell pulled him over. Det. McDonnell began saying things to the effect of, “What are you going to do? Think you’re tough? You’re going to hit me? You’re going to punch me?” § 87(2)(b) denied doing anything to provoke this reaction from Det. McDonnell, aside from looking up at him.

Det. McDonnell then ordered § 87(2)(b) “Put your fucking phone down,” and, “Put down your fucking phone.” Det. McDonnell repeated this order over a period of 15 seconds, and became louder. § 87(2)(b) refused to put his phone down, saying, “I’m not putting it down. I’ve done nothing wrong.”

Det. McDonnell then began to issue § 87(2)(b) orders to exit the vehicle. § 87(2)(b) did not respond to these commands. Det. Bevers then told § 87(2)(b) “Look, put it down, for your own safety and our safety.” Because Det. Bevers asked nicely, § 87(2)(b) placed his cell phone on the seat in between his legs. Det. McDonnell then said, “Get the fuck out of the car. Get out of the fucking car.” While Det. McDonnell tried to pull § 87(2)(b) out of the vehicle, Det. McDonnell also allegedly told § 87(2)(b) who was protesting that he had done nothing wrong, “Just shut the fuck up. Get the fuck out.”

Once § 87(2)(b) got out of the vehicle, § 87(2)(b) alleged that Det. McDonnell said, “Who the fuck do you think you are? You think you’re tough? I know who you are. You’re a piece of shit. You’re a miserable bastard. You’re a low-life. You’re a drug dealer. What the fuck are you going to do, tough guy, hit me?”

§ 87(2)(b) (BR 30 and 31) corroborated that an argument began between Det. McDonnell and § 87(2)(b). § 87(2)(b) did not remember exactly how the argument began. § 87(2)(b) noted that § 87(2)(b) was holding his cell phone in both of his hands, hovering above his lap, and looking down at his cell phone, when Det. McDonnell said, “Put the fucking phone down.” Det. McDonnell said this repeatedly over a period of seconds, after which point § 87(2)(b) did put his cell phone down. Det. McDonnell then “bullied” § 87(2)(b) by telling him, “You guys are garbage. You guys are low-lives.” § 87(2)(b) replied, “I’ll shit on your life. My life is much better than yours.”

After two or three minutes of arguing in this fashion, Det. McDonnell told § 87(2)(b) “Get out of the car, get out of the car, get the fuck out of car,” as he raised his voice. Once Det. McDonnell removed § 87(2)(b) from the vehicle, Det. McDonnell said to § 87(2)(b) “Piece of shit...we told you to get out of the car and you did not listen. You did not fucking listen. So we had to take you out of the car like an animal. We know you. You’re a drug dealer.” Det. McDonnell also told § 87(2)(b) “Don’t move. Relax.”

§ 87(2)(b) (BR 22) alleged that while § 87(2)(b) was still in the vehicle, Det. McDonnell said, “Oh, you think you’re a pretty boy? You think just because you’re rich...?” § 87(2)(b) replied, “Don’t be mad just because my life is better than yours.” § 87(2)(b) also alleged that in the course of removing § 87(2)(b) from the vehicle, Det. McDonnell said, “Get the fuck out. Come here, you bastard,” and alleged that in the course of effecting § 87(2)(b)’s arrest, Det. McDonnell called § 87(2)(b) a “fucking loser.”

Neither § 87(2)(b) nor § 87(2)(b) provided statements about this incident. § 87(2)(b) (BR 23 and 24) corroborated that Det. McDonnell spoke nastily towards § 87(2)(b) and yelled at him, but did not allege the use of profanity. § 87(2)(b) did not corroborate this allegation (BR 58).

Video footage does not capture any of these allegations of profanity. Video footage begins at some juncture after § 87(2)(b) has been removed from the vehicle. It depicts § 87(2)(b) standing at the rear passenger side with his back to the camera. Det. McDonnell stands in front of him to his left side. Det. Garcia stands to his right side. Det. McDonnell and § 87(2)(b) appear to be speaking, though most of their conversation is inaudible. At 00:21 seconds in the video footage, § 87(2)(b) raises his hands to rub at his neck. Det. McDonnell raises his voice and tells § 87(2)(b) “Put your fucking hands down, do you understand me?” (BR 01 )

Det. McDonnell (BR 29) said that when he approached the vehicle, at least one or two of the occupants of the backseat became belligerent and verbally abusive towards him. When asked to clarify what he meant by belligerent and verbally abusive, Det. McDonnell cited only that the occupants of the backseat were saying, “Why are you stopping us?” Det. McDonnell did not know whether this question was directed to him or towards other officers, and did not remember if any officer responded to them. Det. McDonnell thought he may have told the occupants of the backseat, to “Sit tight,” or, “Just relax. You’ll be on your way.” Det. McDonnell then said that he saw an occupant of the vehicle fumbling with an object that he thought was a threat to him. One to two minutes after Det. McDonnell approached the vehicle, he saw § 87(2)(b) fumbling with “something.” § 87(2)(b) “may have had something in his hands,” and “may have attempted to put it in his pocket, or wedge it between the back seats of the vehicle.” Det. McDonnell could not describe this object in any way. Det. McDonnell did not remember if he noticed § 87(2)(b) holding “something” before he began to “fumble” with this something. Det. McDonnell did not remember in which hand § 87(2)(b) held the object. Det. McDonnell did not remember if, when § 87(2)(b) began to “fumble” with the object, he was still able to see § 87(2)(b)’s hand or the object. Det. McDonnell did not remember if, once § 87(2)(b) “fumbled” with the object towards his pocket or the seats, if § 87(2)(b) withdrew his hand, or if he ever saw him holding the object again. Det. McDonnell did not remember seeing § 87(2)(b) holding a cell phone, or if the object he thought he saw § 87(2)(b) holding was consistent with the appearance of a cell phone.

Because of this “fumbling” with an object, and because § 87(2)(b) was not complying with Det. McDonnell’s instruction to just “sit tight,” Det. McDonnell feared for his safety, and ordered § 87(2)(b) to exit the vehicle. § 87(2)(b) refused, saying, “I’m not getting out of the vehicle, You can’t do this to me.” When Det. McDonnell began to remove § 87(2)(b) from the vehicle, § 87(2)(b) said, “Fuck you,” and physically resisted.

Once § 87(2)(b) was out of the vehicle, Det. McDonnell said § 87(2)(b) was standing at the rear passenger panel with his back to the vehicle. Det. McDonnell initially said he did not remember where § 87(2)(b)’s hands were, but then said that § 87(2)(b) put both of his hands up. Det. McDonnell thought he might have told § 87(2)(b) “Put your hands down. You’re not in trouble,” or something to the effect of, “Chill out, relax.” § 87(2)(b) was still being verbally abusive towards Det. McDonnell, but Det. McDonnell could not remember more specifically what he said.

When questioned about the various allegations of profanity, Det. McDonnell uniformly said that he could not recall saying any of the alleged statements. Det. McDonnell acknowledged using profanity during this incident, but did not remember what he said, or when, but thought it may have been when he was trying to get § 87(2)(b) to “stop fooling around in the backseat,” or when removing him from the vehicle. Det. McDonnell said he may have used this profanity because § 87(2)(b) was not listening to his commands, and Det. McDonnell thought the profanity might “calm him down.” When presented with the video footage, Det. McDonnell acknowledged saying, “Put your fucking hands down,” and explained that he said this because § 87(2)(b) was not complying with his instructions to stand still.

None of the other officers interviewed (BR 27, 28, 33, 34) recalled hearing Det. McDonnell use any profanity, and while all acknowledged hearing Det. McDonnell say, “Put your fucking hands down,” when presented with the video footage, none of them remembered hearing him say this.

Officers are to be courteous and respectful in their interactions with the public. Patrol Guide Procedure 203-09 (BR 43) An officer may not use profanity toward a civilian without a justifiable reason to do so, such as the need to maintain control or gain compliance during a stressful street encounter. NYPD v. Carey, OATH Index No. 579/99 (BR 44).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) was filming from inside the barbershop at a distance from the officers. Video footage does not depict a crowd gathering on scene, or any individuals attempting to interfere in the incident.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **substantiated**.

Allegation E – Force : Det. Thomas McDonnell used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) refused to exit the vehicle when Det. McDonnell instructed him to do so, and that some physical force was used against him to remove him from the vehicle.

§ 87(2)(b) (BR 25 and 26) said that once he refused to exit, Det. McDonnell reached in through the open rear passenger window and attempted to punch him. § 87(2)(b) believed the punch would have made contact with him on his right cheek or jaw had he not pulled backwards deeper into the vehicle, so that Det. McDonnell's fist merely swiped him. After failing to punch § 87(2)(b), Det. McDonnell again reached for him. Det. McDonnell's fingernails made contact with the right side of § 87(2)(b)'s neck, causing scratches. Det. McDonnell then grabbed § 87(2)(b)'s necklaces and shirt collar. § 87(2)(b) pulled back, so that one of his necklaces broke and the clasp of the other came loose, so that Det. McDonnell was left holding them. Det. McDonnell then again gripped § 87(2)(b) by the front collar of his shirt and pulled it forward as § 87(2)(b) pulled away from him, with his back to the driver side and his feet pushing off the closed rear passenger door. While Det. McDonnell held § 87(2)(b) he managed to unlock § 87(2)(b)'s door through the open window and pull it open. At this time, § 87(2)(b) and § 87(2)(b) got out of the vehicle through the open backseat door on the driver side. § 87(2)(b) exited through the driver side and then came back around the rear of the vehicle to the passenger side.

§ 87(2)(b) in his telephone statement (BR 30) said that Det. McDonnell reached into the vehicle and gripped § 87(2)(b) by his arm, or by the front or chest of his shirt. In his in-person statement (BR 31), § 87(2)(b) more closely corroborated § 87(2)(b)'s account, saying that Det. McDonnell opened the rear passenger side door, told § 87(2)(b) to exit the vehicle, tried to punch him but missed, scratched § 87(2)(b)'s neck, and gripped two necklaces that he wore. § 87(2)(b) leaned away from Det. McDonnell, but otherwise did not resist being removed.

In his telephone statement (BR 23 and 24), § 87(2)(b) said that while § 87(2)(b) was still in the vehicle, Det. McDonnell punched § 87(2)(b) in the face with a closed fist, which caused § 87(2)(b)'s glasses to break, and then grabbed him, pulling him from the vehicle. In his in-person statement, § 87(2)(b) said that § 87(2)(b) initially exited the vehicle of his own accord and spoke with Det. McDonnell, and that Det. McDonnell then placed § 87(2)(b) back inside the vehicle. After § 87(2)(b) had been placed inside the vehicle again, Det. McDonnell placed one elbow on the window frame and leaned in to speak to § 87(2)(b). Det. McDonnell then punched § 87(2)(b) through the open window with his right hand in a closed fist.

§ 87(2)(b) (BR 22) confirmed that § 87(2)(b) refused to exit the vehicle. § 87(2)(b) alleged that Det. McDonnell told § 87(2)(b) to exit the vehicle, and then pulled him out by placing both of his hands on either side of § 87(2)(b)'s neck, so that both of his hands make contact with § 87(2)(b)'s windpipe. § 87(2)(b) made no mention of how § 87(2)(b) was removed from the vehicle (BR 58).

Video footage does not depict how § 87(2)(b) was removed from the vehicle (BR 01 and 02).

Det. McDonnell (BR 29) said that he instructed § 87(2)(b) to exit the vehicle and that § 87(2)(b) verbally refused. Det. McDonnell reached in to the vehicle to grab § 87(2)(b)'s arm, though he did not remember whether or not he was successfully able to grab it. § 87(2)(b) resisted by leaning away from Det. McDonnell deeper into the vehicle and kicking his legs towards Det. McDonnell's chest. Some of these kicks made contact with Det. McDonnell, but he sustained no injuries from them. Det. McDonnell did not remember attempting to punch § 87(2)(b) or scratching § 87(2)(b)'s neck, or pulling at necklaces he wore. Det. McDonnell did not remember how § 87(2)(b) ultimately came to be out of the vehicle.

Sgt. Latorre (BR 28) said that when an officer – he did not remember which – ordered the occupants of the backseat to get out, the occupants of the backseat did not comply. The doors of the vehicle were locked. Sgt. Latorre instructed § 87(2)(b) to unlock the doors, but he did not do so. Sgt. Latorre reached in through the open driver side window and tried to unlock the doors by pressing a button on the door panel, but had difficulty locating the button from outside of the vehicle. Sgt. Latorre was unsure what ultimately caused the doors to unlock, and was unsure how long it took to get them unlocked. Once the doors unlocked, § 87(2)(b) and § 87(2)(b) exited the backseat through the driver side, but § 87(2)(b) did not, laughed at the officers, and said, "I don't have to get out of the vehicle." Sgt. Latorre corroborated Det. McDonnell's account that § 87(2)(b) resisted by kicking his legs and leaning deeper in to the vehicle. Sgt. Latorre saw Det. McDonnell make contact with § 87(2)(b)'s upper body to remove him from the vehicle, but could not be more specific.

Det. Garcia (BR 27) said he helped remove § 87(2)(b) from the vehicle by leaning into the vehicle through the rear passenger side and grabbing § 87(2)(b)'s right arm, which § 87(2)(b) pulled away. § 87(2)(b) also resisted by refusing to move, but did not otherwise resist. Det. Garcia thought Det. McDonnell also assisted in removing § 87(2)(b) from the vehicle, but did not remember how Det. McDonnell assisted.

Det. Sosinski (BR 34) confirmed that § 87(2)(b) resisted being brought out of the vehicle by turning his back to the driver side and leaning away from Det. McDonnell, and by flailing his legs, though he did not see § 87(2)(b) kick at Det. McDonnell. Det. Sosinski did not see how Det. McDonnell made contact with § 87(2)(b) and did not see him punch him, scratch his neck, or pull at necklaces he wore.

Det. Bevers (BR 33) denied seeing how § 87(2)(b) was removed from the vehicle.

Officers making a traffic stop may order the driver, as well as any passengers, to exit a vehicle pending completion of a stop. Maryland v. Wilson, 519 U.S. 408 (1997) (BR 45) Officers must use the minimum force necessary to overcome resistance. Patrol Guide Procedure 203-11 (BR 46).

§ 87(2)(g)

It is consequently recommended that **Allegation E** be closed as **exonerated**.

Allegation F – Force: Det. Thomas McDonnell used a chokehold against § 87(2)(b)
Allegation G – Force: Det. Thomas McDonnell restricted § 87(2)(b)'s breathing.

§ 87(2)(b) (BR 25 and 26) alleged that once he was removed from the vehicle, Det. McDonnell placed both of his hands around the front of his neck, with his thumbs over his windpipe, and squeezed for approximately 30 seconds, restricting § 87(2)(b)'s breathing.

§ 87(2)(b) (BR 30 and 31) did not see Det. McDonnell commit this allegation. § 87(2)(b) (BR 23 and 24) also did not see Det. McDonnell commit this allegation. § 87(2)(b) (BR 22) said he saw Det. McDonnell grip § 87(2)(b) around his neck with both of his hands, but said this occurred as Det. McDonnell was pulling § 87(2)(b) out of the vehicle. § 87(2)(b) (BR 58) did not corroborate this allegation.

This allegation is not depicted in the video footage.

Det. McDonnell (BR 29) categorically denied using any form of a chokehold against § 87(2)(b) or having any indication that his breathing was restricted. All other officers (BR 27, 28, 33, and 34) similarly denied seeing Det. McDonnell using a chokehold, or having any indication that § 87(2)(b)'s breathing was restricted.

Officers are forbidden from using chokeholds, defined as (but not limited to) any pressure to the throat or windpipe which may prevent or hinder breathing or reduce intake of air. Patrol Guide Procedure 203-11 (BR 46).

§ 87(2)(g)

As such, it is recommended that **Allegations F and G** be closed as **unsubstantiated**.

Allegation H – Force: Det. Thomas McDonnell used physical force against § 87(2)(b)

§ 87(2)(b) (BR 25 and 26) alleged that once he was out of the vehicle, he was positioned with his back against the rear panel facing Det. McDonnell. The rear passenger door of the vehicle was open and about a half a foot away from § 87(2)(b)'s left side. § 87(2)(b) tilted to his left side and reached for a water bottle in the pocket of the open rear passenger door. § 87(2)(b) did so as he was thirsty, as it was hot out at the time of the incident, and Det. McDonnell had allegedly choked him a few minutes before. As soon as § 87(2)(b) touched the water bottle and pulled it slightly upwards, Det. McDonnell punched him on his right cheek. § 87(2)(b) dropped the water bottle. The sunglasses § 87(2)(b) wore broke and the frame pressed into his upper left cheekbone, causing a laceration. § 87(2)(b) later heard Det. McDonnell say that he thought § 87(2)(b) was reaching for his gun, which § 87(2)(b) denied.

An ambulance was called to the 68th Precinct for § 87(2)(b). The ambulance treated § 87(2)(b) § 87(2)(b) but he refused to go to the hospital as he did not want to delay his arrest processing. The Ambulance Call Report was subpoenaed from FDNY and is still outstanding. This injury is visible in § 87(2)(b)'s arrest photograph (BR 47). The treatment he received is documented in the command log (BR 48).

§ 87(2)(b) (BR 30 and 31) said that while he was on the driver side of the vehicle, he was able to § 87(2)(b)'s back against the passenger side and Det. McDonnell's front. As § 87(2)(b) and Det. McDonnell argued, § 87(2)(b) leaned to his side and reached for a water bottle. § 87(2)(b) did not lean forward towards Det. McDonnell. § 87(2)(b) thought the water bottle was on the ground, but later clarified that he did not actually see where § 87(2)(b) retrieved the water bottle from, but later saw § 87(2)(b) holding the water bottle in his hand. When § 87(2)(b) was upright again, Det. McDonnell punched § 87(2)(b)'s face.

§ 87(2)(b) (BR 23 and 24) corroborated that Det. McDonnell punched § 87(2)(b) breaking his glasses, but said this occurred while § 87(2)(b) was still in § 87(2)(b)'s vehicle. In his telephone statement, § 87(2)(b) (BR 22) corroborated that Det. McDonnell punched § 87(2)(b) causing his glasses to break, once he was removed from the vehicle, but said that § 87(2)(b) was already holding the water bottle when he was removed from the car. In his telephone statement, § 87(2)(b) confirmed that he saw Det. McDonnell punch § 87(2)(b) (BR 58).

This use of physical force is not documented on the video footage (BR 01 and 02).

Det. McDonnell (BR 29) said that once § 87(2)(b) was removed from the vehicle, he issued him instructions to the effect of, "Chill out, relax," or, "Put your hands down. You're not in trouble," as § 87(2)(b) had put both of his hands up with open palms, displaying them to Det. McDonnell. § 87(2)(b) was still "verbally assaulting" Det. McDonnell by saying, "You and your team are nothing but jokes." § 87(2)(b) then suddenly lunged towards Det. McDonnell's right side, where Det. McDonnell holsters his firearm, so that he made contact with Det.

McDonnell's waist. Det. McDonnell believed § 87(2)(b)'s hands were open, or not in closed fists, at this time. Det. McDonnell did not know what § 87(2)(b) was trying to do, but thought he may have been attempting to reach for his firearm, and so pushed § 87(2)(b) away by placing both hands on his chest area. Det. McDonnell did not remember if he successfully pushed § 87(2)(b) off of him. § 87(2)(b) reacted by either pushing Det. McDonnell's chest or hands away, causing Det. McDonnell to stumble backwards. Det. McDonnell then with his right hand punched § 87(2)(b) in his face to defend himself. § 87(2)(b) was wearing sunglasses at the time Det. McDonnell punched him, but did not remember what happened to the sunglasses after § 87(2)(b) was punched. Det. McDonnell later observed swelling to § 87(2)(b)'s left cheek. Det. McDonnell did not know what caused this injury specifically.

§ 87(2)(b)

Det. Garcia (BR 27) said that once § 87(2)(b) was removed from the vehicle, he stood with § 87(2)(b) and Det. McDonnell at the rear passenger side of the vehicle. While Det. Garcia's back was turned, he heard a scuffle that sounded like "pushing and shoving." Det. Garcia turned and saw Det. McDonnell and § 87(2)(b) pushing each other. Det. Garcia then approached to assist Det. McDonnell, who by that time was gripping § 87(2)(b) by one or both of his arms. Det. Garcia gripped one of § 87(2)(b)'s arms and with Det. McDonnell brought § 87(2)(b) onto the ground, where § 87(2)(b) was handcuffed. After § 87(2)(b) was handcuffed, Det. Garcia positioned § 87(2)(b) so that he was sitting on the ground. Det. Garcia at this time observed a laceration to one of § 87(2)(b)'s cheeks.

Sgt. Latorre (BR 28) said he was at the driver side when he heard a scuffle from the passenger side of the vehicle. Sgt. Latorre could not be more specific about the scuffle he heard. When Sgt. Latorre looked up, he saw Det. McDonnell trying to subdue § 87(2)(b) who was flailing his arms. Sgt. Latorre did not see how Det. McDonnell made contact with § 87(2)(b) or how exactly § 87(2)(b) was positioned. Sgt. Latorre walked around the rear of the vehicle to assist Det. McDonnell in bringing § 87(2)(b) onto the ground. Sgt. Latorre observed the injury to § 87(2)(b) only after he was handcuffed.

Det. Bevers (BR 33) said he was standing on the driver side of the vehicle addressing § 87(2)(b) and § 87(2)(b) when he heard a scuffle from the passenger side. Det. Bevers focused his attention on § 87(2)(b) and § 87(2)(b) and denied observing the scuffle.

Det. Sosinski (BR 34) said he was at the rear of the vehicle closer to the driver side with § 87(2)(b) and § 87(2)(b) when he heard a "scuffle." Det. Sosinski looked up and saw that § 87(2)(b) was resisting officers attempting to place him into handcuffs by flailing his arms around and shifting his body weight. Det. Sosinski said that because he was standing closer to the driver side, the vehicle obstructed his view of the struggle, and he could not see how Det. McDonnell made contact with him at that time.

None of the officers saw § 87(2)(b) lunge towards Det. McDonnell, and none of them saw Det. McDonnell punch § 87(2)(b).

Officers must use the minimum force necessary to overcome resistance. Patrol Guide Procedure 203-11 (BR 46).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation H** be closed as **unsubstantiated**.

Allegation I – Abuse of Authority: Sgt. Latorre frisked § 87(2)(b)

Allegation J – Abuse of Authority: Sgt. Latorre searched § 87(2)(b)

Allegation K- Abuse of Authority: Det. Eric Sosinski frisked § 87(2)(b)

Allegation L – Abuse of Authority: Det. Eric Sosinski frisked § 87(2)(b)

§ 87(2)(b) (BR 30 and 31) said that Sgt. Latorre asked him and § 87(2)(b) if he could frisk them. § 87(2)(b) said, “Okay, yes,” and believed § 87(2)(b) also consented to this frisk. After patting him down, Sgt. Latorre asked § 87(2)(b) and § 87(2)(b) to remove items from their pockets, which they both did. Sgt. Latorre then asked § 87(2)(b) if he could search a bag belonging to him. § 87(2)(b) consented to this search.

On the video footage, it appears that Sgt. Latorre frisks § 87(2)(b) and then reaches into his front left shorts pocket (BR 01 ). Det. Sosinski is visible standing behind § 87(2)(b) but the frisk of § 87(2)(b) is not depicted on the video footage. When Sgt. Latorre’s frisk and search of § 87(2)(b) is complete, he has him stand with his hands on the trunk of § 87(2)(b)’s vehicle. Det. Sosinski then again frisks § 87(2)(b) (BR ). A backpack is visible leaning against the rear driver side tire of the vehicle. No search of this bag or any other bag is depicted on the video footage.

Sgt. Latorre (BR 28) believed that § 87(2)(b) and § 87(2)(b) were frisked, but did not believe they were searched, and initially did not remember who frisked them. Sgt. Latorre then reviewed the video footage, and acknowledged frisking § 87(2)(b). Sgt. Latorre said both of the occupants of the backseat were frisked due to their non-compliance with exiting the vehicle, as well as movements he observed them making in the backseat prior to ordering them to exit. These movements included reaching their hands in between their legs or to their sides. Sgt. Latorre did not observe any objects in their hands, and did not remember which occupants of the vehicle did this. Sgt. Latorre denied searching a bag, or seeing any officer do so. Sgt. Latorre made no mention of requesting or receiving consent for the frisk or search.

Det. Sosinski (BR 34) similarly confirmed that § 87(2)(b) and § 87(2)(b) were shifting their bodies in the backseat, and that sometimes their hands were not visible to him, though he did not remember where their hands were exactly. Det. Sosinski said both § 87(2)(b) and § 87(2)(b) were compliant with exiting the vehicle, but that he frisked them based upon the movements he observed them making in the backseat. Det. Sosinski did not see Sgt. Latorre frisk or search § 87(2)(b) prior to Det. Sosinski’s frisk of him, and reviewing the video footage did not refresh his recollection. Det. Sosinski denied searching a bag, or seeing any officer do so. Det. Sosinski similarly made no mention of requesting or receiving consent for the frisk or search.

In order to frisk an individual, an officer must have reasonable suspicion to believe either that the individual is in possession of a weapon, or, in the case of a lawful detainment, that he is in danger of physical injury by virtue of the detainee being armed. *People v. DeBour*, 40 N.Y.2d 210 (1976) (BR 51). Once a frisk is conducted and any reasonable basis for fear for safety has abated, the officer cannot continue to search a suspect. *People v. Williams*, 217 A.D.2d 1007 (App. Div. 4th Dept. 1995) (BR 52) Founded suspicion that criminal activity is afoot is necessary to elicit consent to a frisk and search. *People v. Hollman*, 79 N.Y.2d 181 (1992) (BR 40)

§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations I and J** be closed as **exonerated**. § 87(2)(g)

it is recommended that **Allegation K** be closed as **victim uncooperative**. § 87(2)(g)

it is recommended that **Allegation L** also be closed as **exonerated**.

§ 87(4-b), § 87(2)(g)

Pod:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date